

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0002230

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: TAYLOR MARTINDALE

vs.

DEFENDANTS: MICHAEL THOMAS
SHIRLOCK ET AL.

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Brown's Binyerd's ("Defendant" or "Binyerd") Motion for Summary Judgment, or in the alternative Summary Adjudication, is **GRANTED**.

Background

On Saturday, September 30, 2023, plaintiff Taylor Martindale ("Plaintiff") was sexually assaulted while a patron at Brown's Binyerd, a bar. At the time a then unknown assailant approached Plaintiff from behind on the dance floor, reached under her skirt, and forcefully penetrated her with his hand. Plaintiff immediately reported the assault to defendant Tarkington, Binyerd's bouncer. When the assailant exited the bathroom, Plaintiff pointed him out to defendant Tarkington. The assailant exited the Binyerd through the bar's backdoor. Plaintiff ultimately reported the assault to the police and the assailant was later identified as Defendant Yefri Reyes Hernandez. Hernandez was arrested but criminal charges were ultimately dropped.

Plaintiff filed this civil action on March 8, 2024, alleging causes of action for Sexual Assault and Battery, Violation of the Ralph Act, Violation of the Bane Act, Unfair Competition (Bus & Prof. Code, § 17200 et seq.), Gender Violence (Civ. Code. § 52.4), Intentional Infliction of Emotional Distress, and Negligence.

Presently before the Court is Defendant's Motion for Summary Judgment, or in alternative, Summary Adjudication. The motion is premised on the theory that the Binyerd owed no duty to protect Plaintiff from the sexual assault, that the assault was unforeseeable as a matter of law, and that the response of Binyerd's staff was reasonable.

Objections to Evidence

Defendant's Objection to Evidence No. 1 is **OVERRULED**. The Objection is to Evidence referenced by Plaintiff in her "Opposition papers in UMF No. 59." (See Obj. to Evidence p. 1:23-25.) There is no evidence submitted in Opposition to Undisputed Material Fact ("UMF") No. 59 as 59 was undisputed. However, to the extent the Objection was directed at evidence submitted in response to UMF No. 58, the Objection is moot for the reasons described below.

Defects in Separate Statement

Plaintiff's Responsive Separate Statement violates California Rules of Court ("CRC") rule 3.1350, subdivision (f)(2) which provides: "An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers."

For example, responses to UMF Nos. 9-14 indicate the facts are disputed, but do not cite to any evidence in support of the asserted disputes while response to Fact No. 27 indicates "Martindale Depo" but does not cite to the page and line number. (See e.g., Responses to Separate Statement ("RSS") Facts No. 9-14, 27.) The Court notes some disputed facts are supported by citations to evidentiary support (See e.g. RSS Fact No. 58), however no evidence in support of the Opposition was filed with the Court. (CRC rule 3.1350, subd. (e)(3).) The only evidence before the Court is that which Defendant submitted in support of the Motion.

Moreover, many of the facts are disputed but the citation to evidence justifying the dispute is Defendant's UMF No. 86. UMF No. 86 states: "Plaintiff did not call the police because she felt threatened by Shirlock. In fact, he told her he was sorry for what had happened when Shirlock and Plaintiff were looing [sic] over the video footage of the incident."

UMF No. 86 cites to Martindale Depo. p. 50:10—19 in support. That deposition portion reads:

Q: So you didn't call the police because he threatened you, however, right? He didn't threaten you or raise his voice or make you feel like he was a threat to you; is that true?

A: No, I did not feel threatened by Mike.

It seems clear to the Court that UMF No. 86 contains a typographical error. Plaintiff cannot manufacture a dispute of material fact from a typo in the UMF when the evidence cited in support of that UMF specifically says the opposite.

The Court will consider Defendant's UMF truly disputed only to the extent Plaintiff's RSS marks the fact as "Disputed," cites evidence in support of the dispute, that evidence has been submitted to the Court, and that evidence supports the UMF. These properly "Disputed" facts are limited to RSS Fact Nos. 16 (Martindale Depo. 69:1—25 submitted by Defendant), 31 (Martindale Depo. p. 49 submitted by Defendant), 32 (Martindale Depo. pp. 48-49 and Tarkington Depo. p. 29 submitted by Defendant), and 67 (Shirlock Depo. p. 43 submitted by Defendant). The remainder of the RSS facts shall be treated as "Undisputed."

Legal Standard

A party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if the party does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467, as modified (Jan. 24, 2008).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Ibid.*; see also Code Civ. Proc., § 437c, subd. (c).)

Discussion

Defendant seeks Summary Judgment or, in the alternative Summary Adjudication, of the following issues:

- ISSUE 1. First Cause of Action Sexual Assault and Battery: No agency, employment, conspiracy, or ratification.
- ISSUE 2. Second Cause of Action Ralph Act: No threats, violence, or discriminatory animus.
- ISSUE 3. Third Cause of Action Bane Act: No threats, intimidation, or coercion.
- ISSUE 4. Fourth Cause of Action Unfair Business Practices: No unlawful business practice or loss of money.
- ISSUE 5. Fifth Cause of Action Gender Violence: No commission, participation, or aiding and abetting.
- ISSUE 6. Sixth Cause of Action Intentional Infliction of Emotional Distress: No intent, causation, extreme or outrageous conduct.
- ISSUE 7. Seventh Cause of Action Negligence: No heightened foreseeability, no notice or opportunity to prevent assault, not breach of duty or causation, no negligent hiring, supervision or retention.

In support of the Motion, Defendant cites to the following facts:

The assailant was a patron, not an employee or agent of Defendant (Defendant's Undisputed Material Facts ("UMF") Nos. 1-5, 24, 36-37, 71); Plaintiff saw no warning signs before the assault (UMF Nos. 8-10, 61-63); that the incident occurred suddenly and quickly (UMF No. 63); and that there are no facts showing Defendants intended, authorized, approved, contributed to, or made the assault more likely (UMF Nos. 11-13, 38-40, 52, 69-70). Defendant also argues Plaintiff admitted Defendants made no threats, engaged in no coercion, did not prevent her or her multiple friends from calling police, and expressed no discriminatory or gender-based hostility. (UMF 20-29, 83-89.) Plaintiff and her friends had cell phones and the ability to call police to report the incident, but they did not do so. (UMF Nos. 75-80, 82-89.) Plaintiff further testified that she did not have any evidence of prior sexual assaults occurring at Brown's Binyerd. (UMF Nos. 55-58.)

All of Plaintiff's complaints with the Binyerd Defendants come after the subject incident and are not a substantial factor in causing her harm. (UMF Nos. 14-18, 30, 33, 41-54, 83-89.) The undisputed evidence further establishes that the assailant was unknown not only to Plaintiff, but also to all bar staff, including the on-duty bartender (defendant Shirlock) and security personnel (defendant Tarkington). (UMF Nos. 6-8, 17, 19, 59-60.) There were no prior similar incidents at the establishment (UMF Nos. 55-58); and staff responded immediately after the report by investigating, preventing escalation, and removing the suspect from the premises (UMF Nos. 14-18, 30, 33, 42, 74). Defendant Tarkington testified that friends of Plaintiff announced that they were going to kill or beat up the assailant and that it was in everyone's best interest to get the assailant out of the bar as soon as possible to avoid a fight. (UMF Nos. 33, 67, 74.)

First Cause of Action Sexual Assault and Battery

The Complaint alleges that the assailant sexually assaulted Plaintiff and that the Binyerd "ratified Defendant Assailant's unlawful conduct as described herein by allowing Defendant Assailant to continue to remain inside the bar despite being aware of Defendant Assailant's conduct and despite knowledge of previous sexual assaults having taken place at Binyerds." (See Compl., ¶¶ 37, 41.)

Ordinarily, there is no duty to protect others from third party criminal activity. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 241) However, such a duty has been recognized where there is a special relationship with the injured party, such as business proprietors and their patrons. (*Id.*) A business owner or a landlord has a duty to take affirmative steps to protect against the criminal acts of a third party if the conduct can be reasonably anticipated. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 676, disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5.) "[F]oreseeability, whether heightened or reduced, is tested by what the defendant knows, not what the defendant could have or should have learned." (*Margaret W. v. Kelley R.* (2006) 139 Cal.App.4th 141, 158.)

The CACI jury instruction on point provides: "[An owner of a business that is open to the public/A landlord] must use reasonable care to protect [patrons/guests/tenants] from another person's criminal conduct on [his/her/nonbinary pronoun/its] property if the [owner/landlord] can reasonably anticipate that conduct." (CACI 1005.)

Here, Defendant's UMF in support of the Motion are sufficient to meet its initial burden on Summary Judgment by demonstrating the assailant was not an employee or agent of the Binyerd (UMF Nos. 1-5), that the assailant was previously unknown to both the bartender and security guard on duty that night (UMF Nos. 6-7), that the Binyerd was not warned by Plaintiff or anyone else about the assailant prior to the assault (UMF Nos. 8-10, 17, 19), that there are no facts demonstrating the Binyerd intended, authorized, approved, or contributed to the assault, or made the assault more likely (UMF Nos. 11-13), and that the Binyerd's security guard cooperated with police to identify assailant and provide security footage (UMF Nos. 14, 16).

The burden therefore shifted to Plaintiff to demonstrate triable issues of material fact exist to avoid Summary Judgment. Due to the defects in the Opposition RSS (see above), the only fact disputed by the RSS is UMF No. 16 and that fact is only disputed to the extent of the evidence before of the Court, contained within Martindale Depo. p. 69:1—25 (submitted by Defendant). UMF No. 16 reads: "Brown's Binyerd later provided surveillance footage to police and assisted in identifying and locating the alleged assailant, which led to his arrest." The RSS disputes this fact, noting "The characterization and adequacy of cooperation is contested and should be resolved by the trier of fact. Defendants claim they fully cooperated; Plaintiff claims their cooperation was inadequate, including that Shirlock lied to the detective." Page 69 of the Martindale deposition states that the Binyerd could have cooperated with police and she felt that they failed to do so. (*Id.*, p. 69:1-19.) There is no evidentiary support provided for the contention that Shirlock lied.

The question before the Court is then, as a matter of law, can a failure to cooperate with the police post assault form the basis for third party liability for the assault? The Court cannot locate any case where failure to cooperate post assault generated such liability, based on ratification or otherwise, and the Opposition has not provided a cogent legal rationale for doing so.

For these reasons the Motion is GRANTED as to the First Cause of Action.

Second Cause of Action Ralph Act

As outlined in *Austin B. v. Escondido Union Sch. Dist.* (2007) 149 Cal.App.4th 860, 880–81, the Ralph Act, codified in Civil Code section 51.7, provides:

“ ‘All persons within the jurisdiction of this state have the right to be free from any violence, or intimidation by threat of violence, committed against their persons or property because of political affiliation, or on account of any characteristic listed or defined in subdivision (b) or (e) of [Civil Code s]ection 51, or position in a labor dispute, or because another person perceives them to have one or more of those characteristics. The identification in this subdivision of particular bases of discrimination is illustrative rather than restrictive.’

Civil Code section 51, subdivision (b) provides: “All persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, marital status or sexual orientation are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.”

CACI No. 3023 sets forth the elements of a Ralph Act claim:

‘1. That [the defendant] threatened or committed violent acts against [the plaintiff or his or her property]; [¶] 2. That a motivating reason for [the defendant's] conduct was [his/her] perception of [the plaintiff's protected class]; [¶] 3. That [the plaintiff] was harmed; and [¶] 4. That [the defendant's] conduct was a substantial factor in causing [the plaintiff] harm.’”

Defendant has met its initial burden on summary judgment. (See UMF Nos. 20-24 [establishing lack of threats, violence, or discriminatory reason for acts on behalf of Binyerd].) Due to the defects in the RSS none of these facts are disputed.

Plaintiff has therefore failed to demonstrate triable issues of material fact remain as to this cause of action; there is no evidence before the Court that the Binyerd threatened or committed violent acts against Plaintiff. For these reasons, the Motion is also GRANTED as to the Second Cause of Action.

Third Cause of Action Bane Act

The Legislature enacted Civil Code section 52.1 (the Bane Act) to stem a tide of hate crimes. (*Austin B. v. Escondido Union Sch. Dist.*, *supra*, 149 Cal.App.4th at p. 883.) To obtain relief under Civil Code section 52.1, a plaintiff need not allege the defendant acted with discriminatory animus or intent; a defendant is liable if he or she interfered with the plaintiff's constitutional rights by the requisite threats, intimidation, or coercion. (*Ibid.*) The essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., “threats, intimidation or coercion”), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law. (*Ibid.*)

Defendant met its burden on Summary Judgement by providing facts demonstrating that Binyerd staff members did not threaten, intimidate, or coerce Plaintiff and no staff member prevented Plaintiff from calling the police, etc. (See UMF Nos. 25-33.) Of those, the RSS to UMF Nos. 31 (Martindale Depo. p. 49 submitted by Defendant) and 32 (Martindale Depo. pp. 48-49 and Tarkington Depo. p. 29 submitted by Defendant) are properly supported by citation to evidence that has been put before the Court. The Martindale Depo. pp. 48-49 establishes that Plaintiff wanted to call the police but did not, at least in part because defendant Shirlock told her the police were “worthless.” The Tarkington Depo. p. 29 establishes that defendant Tarkington testified that when Plaintiff said she wished they had called the police, he replied, “[w]ell, he's gone now, and you're safe.”

Plaintiff has failed to demonstrate a triable issue of material fact with respect to the “improper means” portion of the Bane Act, i.e. there is no evidence that Defendants used threats, intimidation, or coercion to prevent Plaintiff from calling the police.

For these reasons, the Motion is therefore GRANTED as to the Third Cause of Action.

Unfair Business Practices

Defendant asserts that Plaintiff's Fourth Cause of Action for violation of Business and Professions Code section 17200 fails because Plaintiff lacks standing. To establish standing under the UCL, a plaintiff must demonstrate injury in fact and a loss of money or property. (Bus. & Prof. Code, § 17204.) In support of its Motion, Defendant provides the following facts: Plaintiff testified that she has not lost any money and Plaintiff has not identified any specific unlawful business practice. (UMF Nos. 34-35.) This was sufficient to meet Defendant's initial burden.

Plaintiff's Opposition failed to oppose the Motion as to this cause of action.

For these reasons, the Motion is also GRANTED as to the Fourth Cause of Action.

Gender Violence

Civil Code section 52.4, subdivision (a) provides in part, "[a]ny person who has been subjected to gender violence may bring a civil action for damages against any responsible party." Subdivision (c) clarifies "[for purposes of this section, 'gender violence' is a form of sex discrimination and means either of the following: (1) One or more acts that would constitute a criminal offense under state law that has as an element the use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction; (2) A physical intrusion or physical invasion of a sexual nature under coercive conditions, whether or not those acts have resulted in criminal complaints, charges, prosecution, or conviction." Subdivision (e) further adds "[n]otwithstanding any other laws that may establish the liability of an employer for the acts of an employee, this section does not establish any civil liability of a person because of his or her status as an employer, unless the employer personally committed an act of gender violence."

The legislative history of Civil Code section 52.4 is very clear that the statute is directed at persons who perpetrate or threaten to perpetrate criminal violence and who are *motivated* to do so by gender *bias or animus*—in other words, persons who are motivated, at least to some degree, by *discriminatory* intent. (*Doe v. Kachru* (2025) 115 Cal.App.5th 175, 211.)

The moving party's UMF in support of Summary Adjudication of this cause of action are UMF Nos. 36-44. The UMF are sufficient to establish there is no evidence of gender violence committed by the Binyerd (or its employees). This shifted the burden to Plaintiff to demonstrate a triable issue of material fact by disputing Defendant's UMF or providing Additional Material Facts ("AMF") for the Court to consider. Plaintiff failed to provide any AMF or properly dispute any of these UMF.

As a result there are no disputes of material fact remaining as to this Cause of Action and the Motion is properly GRANTED.

Intentional Infliction of Emotional Distress

A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) A defendant's conduct is considered to be outrageous if it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Id.*, at p. 1051; see *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.)

In support of the Motion, Defendant's UMF Nos. 45-54 show that Plaintiff will not be able to establish that Defendant's conduct was extreme or outrageous or that it was the cause of Plaintiff's distress over the incident. The burden therefore shifted to Plaintiff to demonstrate triable issues of material fact either by disputing the UMF or providing AMF. Plaintiff failed to provide any AMF or properly dispute any of these UMF.

In addition to failing to properly dispute the UMF, the Opposition memo merely states the elements of the cause of action, but provides no analysis of how Plaintiff has established a triable issue of material fact.

For these reasons, the Motion is also GRANTED as to this cause of action.

Negligence

To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal App.4th 654, 662.)

Ordinarily, there is no duty to protect others from third party criminal activity. (*Delgado v. Trax Bar & Grill, supra*, 36 Cal.4th at p. 241) However, such a duty has been recognized where there is a special relationship with the injured party, such as business proprietors and their patrons. (*Id.*) A business owner or a landlord has a duty to take affirmative steps to protect against the criminal acts of a third party if the conduct can be reasonably anticipated. (*Ann M. v. Pacific Plaza Shopping Center, supra*, 6 Cal.4th at p. 676.) "[F]oreseeability, whether heightened or reduced, is tested by what the defendant knows, not what the defendant could have or should have learned." (*Margaret W. v. Kelley R., supra*, 139 Cal.App.4th at p. 158.)

The CACI jury instruction on point provides: "[An owner of a business that is open to the public/A landlord] must use reasonable care to protect [patrons/guests/tenants] from another person's criminal conduct on [his/her/nonbinary pronoun/its] property if the [owner/landlord] can reasonably anticipate that conduct." (CACI 1005.)

Defendant's UMF Nos. 55-89, submitted in support of this issue, demonstrate that Plaintiff will not be able to establish duty (foreseeability) or causation. The burden therefore shifted to Plaintiff to demonstrate triable issues of material fact exist. The only fact properly disputed by Plaintiff was RSS to UMF No. 67, and only to the extent it cites to Shirlock Depo. p. 43 (submitted by Defendant) for evidentiary support.

UMF No. 67 reads: “A friend of the Plaintiff named Chase, who was being restrained by another customer got irate and said he was very angry and asked where the assailant was so that he could kill him or beat him up or something. The suspected assailant left through the back door shortly after the report, in order to keep the assailant and others safe. The assailant was also with a group of friends.”

RSS to UMF No. 67 reads: “DISPUTED. The nature and extent of staff intervention is contested and to be resolved by the trier of fact. Whether the assailant was “kicked out,” versus told “it was best he leave,” versus “left anyway” represents disputed characterizations of staff action. The nature and extent of Plaintiff’s friends [sic] response to the assault is contested and should be resolved by the trier of fact. Defendants describe the group attempting to “go after” the assailant, while Plaintiff testified that they were trying to figure out what was going on, but was unaware of any intended assault.”

Shirlock Depo. p. 43 establishes:

“Q: But just to be clear, it sounds like he was either exiting or he was kicked out. Which is it, to the best of your understanding?

A: I believe he was leaving on- I believe he was exiting anyway, so I believe that he was leaving at the time. But Guy kicked him out the back anyway, but I believe he was leaving at the time anyway, by himself.

Q: And you recall Guy confronting him? Like, when you say he kicked him out...

A: I recall Guy standing by the bathroom and talking to him.”

Even if this creates a dispute of material fact over whether the assailant left post assault or was kicked out by Binyerd staff, there is still no dispute over duty (foreseeability). Accordingly, Plaintiff has not met her burden to demonstrate a triable issue of material fact with respect to duty and the claim is properly resolved on Summary Judgment.

For these reasons, the Motion for Summary Judgment as a whole is GRANTED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004772

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CITY OF MILL VALLEY

vs.

DEFENDANT: WILLIAM EARL
MCGLASHAN, JR

NATURE OF PROCEEDINGS: 1) MOTION - COMPEL ANSWERS TO
INTERROGATORIES - DISCOVERY FACILITATOR PROGRAM
2) MOTION - COMPEL ANSWERS TO INTERROGATORIES - DISCOVERY
FACILITATOR PROGRAM
3) MOTION - COMPEL ANSWERS TO INTERROGATORIES - DISCOVERY
FACILITATOR PROGRAM

RULING

The motions brought by the City of Mill Valley ("City") to compel Plaintiff Shanna Kay Upton ("Upton") are moot. The City's request for sanctions, however, is **granted in part**. Upton shall pay counsel for the City **\$1260** within twenty (20) days of this order. Upton's request for sanctions is denied.

Discussion

After the motions to compel were filed in this case, Upton provided further discovery responses to the City. She contends that the City's motions should be denied as moot. Upton contends that the City should have withdrawn the motions and she seeks sanctions against the City for failing to do so.

The City acknowledges that Upton has provided further responses but nonetheless asserts that its request for sanctions has not been resolved. The City contends that it should be awarded sanctions for having had to bring the motions which were necessitated by Plaintiff's failure to meet and confer in good faith.

To the extent the motions seek to compel further responses they are moot. However, contrary to Upton's argument, providing responses after a motion to compel has been filed does not mean sanctions cannot be imposed under the Discovery Act. (See Cal. Rules of Court, rule 3.1348.) The City was the prevailing party because its motions resulted in Upton providing further responses. In addition, Upton had opportunities to resolve the discovery dispute through the

meet and confer process but communicated that she would not provide further responses. Failing to meet and confer in good faith is an independent discovery abuse for which sanctions are authorized. (See Code Civ. Proc., § 2023.20; *Moore v. Mercer* (2016) 4 Cal.App.5th 424, 448.)

The City's request for sanctions is granted in part. City is awarded reasonable sanctions in the amount of \$1260 representing six hours of attorney time at a rate of \$210 per hour. Upton's request for sanctions against the City is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005504

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CHRISTINE TSUCHIDA

vs.

DEFENDANT: GARY HILL, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendants Crystal Keller (“Keller”), Hamilton Zanze, and Mission Rock Residential California, Inc.’s (“Mission Rock”; these three together, “Movants”) motion for summary judgment or, alternatively, summary adjudication is **DENIED**.

Background

This is a dog bite case. Plaintiff Christine Tsuchida (“Plaintiff”) alleges that on October 24, 2024, she and Gary Hill (“Hill”) were both residents at the Mission Rock at North Bay Apartments complex in Novato. (FAC, ¶ 13-14.) Hill allegedly “allowed his dog[,]” Lancelot, “to break free from his apartment[.]” (*Id.* at ¶ 14.) Lancelot allegedly bit the back of Plaintiff’s right arm as she returned to her apartment following a grocery shopping trip. (*Id.* at ¶¶ 14, 16.)

In addition to claims against Hill and as-yet-unidentified Does, Plaintiff’s FAC asserts a cause of action for negligence against Movants. The pleading describes Hamilton Zanze, a corporate entity, as the owner of the apartment complex at issue; Mission Rock as the property manager; and Keller as an agent, employee, or contractor of Hamilton Zanze, Mission Rock, and/or a Doe defendant. (FAC, ¶¶ 7-9.) Plaintiff alleges that Movants “created the dangerous conditions” leading to her injuries in that they had actual knowledge of Lancelot’s “dangerous propensities” for some time but did not issue warnings about him and did not take adequate measures to protect the complex’s residents from the dangerous dog. (*Id.* at ¶¶ 25-26.)

Before the Court is Movants’ motion for summary judgment, or, alternatively, summary adjudication.

Legal Standard

Any party may move for summary judgment. (Code of Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) Similarly, a party may move for summary adjudication as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication . . . shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) The object of the summary judgment procedure is “to cut through the parties’ pleadings” to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is the defendant, the initial burden entails showing “that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

Discussion

Procedural Matters

The Court does not rule on Movants’ evidentiary objections because they were not material to its disposition of the motion. (See Code Civ. Proc., § 437c, subd. (q).) No Movant met the initial burden associated with a motion for summary judgment or adjudication, so the Court did not have occasion to reach Plaintiff’s evidence in opposition to the motion. (See *Y.K.A. Industries Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 353-354 [“The moving party must satisfy his or her initial burden before the opposing party must controvert anything. . . . Where the evidence submitted by a moving defendant does not support judgment in his favor, the court must deny the motion without looking at the opposing evidence, if any, submitted by the plaintiff.”].) The Court has not considered Movants’ “Reply to Plaintiff’s Separate Statement of Undisputed Material Facts in Opposition[,]” as the summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].)

Merits

Issue No. 1: “Landlord Defendants Are Not Subject to Strict Liability Under Civil Code Section 3342”

This issue relates to Plaintiff's Third Cause of Action for strict liability under Civil Code, section 3342. Section 3342 provides that "[t]he owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness." (Civ. Code, § 3342, subd. (a).) Movants argue that they cannot be liable under this provision because they are not Lancelot's owners.

Movants have not been sued under Civil Code, section 3342, or on a strict liability theory under any other statute. The Third Cause of Action is asserted exclusively against Hill. The sole¹ claim asserted against any Movant is the Second Cause of Action, which is not a strict liability claim.

Issue No. 2: "Landlord Defendants Lacked Actual or Constructive Knowledge of Defendant Hill's Dog's Presence or Dangerous Propensities"

Whether Plaintiff's Second Cause of Action is considered a claim for general negligence or a claim for premises liability, the elements "are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158; see also *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619 [premises liability is a form of negligence].)

In *Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, the Fifth District held that a landlord has a duty to protect another person against injury by a tenant's dog only if the landlord has both *actual* knowledge of the dog's dangerous propensities and the right to have it removed from the premises. (44 Cal.App.3d 504, 514.) Actual knowledge may be shown with circumstantial evidence, but only "if, in light of the [circumstantial] evidence," the inference that the landlord had actual knowledge of the dog's dangerous propensities "is not based on speculation or conjecture. Only where the circumstances are such that the defendant 'must have known' and not 'should have known' will an inference of actual knowledge be permitted." (*Id.* at p. 514, fn. 4.)

Movants argue that none of them had actual knowledge of Lancelot's dangerous propensities. Many of the facts they offer in support of this argument relate exclusively to *Plaintiff's* knowledge of Lancelot's temperament. (See, e.g., UMF Nos. 7, 9-11.) These facts are immaterial. That *Plaintiff* had no knowledge of Lancelot's dangerous propensities is not probative of whether *Movants* had such knowledge. Similar considerations apply to evidence that Plaintiff herself had not reported issues with Lancelot to Movants prior to the incident. (UMF No. 6.) That Plaintiff did not report menacing behavior by Lancelot before the incident does not itself rule out that someone else did.

As to *Movants'* actual knowledge regarding Lancelot, Movants offer that "[p]rior to the incident, Defendant Landlords did not receive any complaints, reports, or communications from Plaintiff or from any other tenant or person regarding Defendant Hill's dog, its behavior, its presence at

¹ Movants' brief suggests that they believe they have been sued on both the First Cause of Action ("General Negligence") and the Second Cause of Action ("Negligence" sounding in premises liability). (See Memorandum, p. 5 ["Plaintiff's remaining claims for general negligence and premises liability are also barred."].) To be clear, the only claim alleged against any Movant is the Second Cause of Action, which is a premises liability claim denominated "Negligence." The First Cause of Action, "General Negligence," is asserted only against Hill and Does 1-3. The Third Cause of Action, "Strict Liability," is asserted against Hill only.

the Premises, or any alleged dangerous propensities.” (UMF No. 15.) “Defendant Landlords” appears to refer to all three Movants. (See Memorandum, p. 1 [defining term “Landlord Defendants”].)

The sole evidence offered in support of UMF No. 15 does not establish that UMF No. 15 is true for all three Movants. Movants rely on the declaration of Anne Birdseye, Mission Rock’s regional manager. (UMF No. 15; Birdseye Dec., ¶ 1.) Ms. Birdseye attests that prior to the incident at issue in this case, “neither [she] nor any other employee or agent of Mission Rock at North Bay received any complaints, reports, or communications from Plaintiff Christine Tsuchida or any other tenant or person regarding Defendant Hill’s dog, its behavior, its presence at the Premises, or any alleged dangerous propensities.” (Birdseye Dec., ¶ 6.) Nowhere in her declaration does she attest to the actual knowledge, or lack thereof, of anyone other than herself and other employees or agents of Mission Rock. This evidence is not sufficient to establish a lack of actual knowledge on the part of Hamilton Zanze or Keller, as Movants have not presented evidence that Keller is an employee or agent of Mission Rock (as opposed to Hamilton Zanze), or that Hamilton Zanze and Mission Rock are related such that the two entities possess the same knowledge or lack thereof. The complaint alleges that Hamilton Zanze and Mission Rock are different entities and does not specify whether Keller was employed by Hamilton Zanze, Mission Rock, or a Doe defendant. (FAC, ¶¶ 7-10.)

The motion is DENIED as to Keller and Hamilton Zanze. The Court proceeds as to Mission Rock only.

A declaration in support of a motion for summary judgment “shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated[.]” (Code Civ. Proc., § 437c, subd. (d).) Ms. Birdseye attests that Mission Rock has no records of any prior incidents, notices, reports, or complaints relating to Lancelot and dating before October 24, 2024, the date of the incident. (Birdseye Dec., ¶¶ 6, 9.) Ms. Birdseye sets forth a basis for her personal knowledge of this fact: It was Mission Rock’s practice to document “any complaint or report . . . regarding a dangerous dog at the Premises[.]” and she did not find any such documentation upon personally “review[ing] the tenant files and maintenance records for the Premises[.]” (*Id.* at ¶¶ 8-9; see also UMF No. 16.) This is competent testimony based on the declarant’s personal knowledge.

The same cannot be said for the other critical assertion in Ms. Birdseye’s declaration, which is that *no employee of Mission Rock* had actual knowledge of Lancelot’s dangerous propensities before he attacked Plaintiff. (Birdseye Dec., ¶ 7 [“At no time prior to [October 24, 2024] did I, or to my knowledge any other Mission Rock employee, have actual knowledge of . . . any vicious or dangerous characteristics of the dog.”].) To the extent this statement is an effort by Ms. Birdseye to affirmatively testify that no Mission Rock employee knew, her declaration does not explain how she is supposedly privy to every other Mission Rock employee’s observations of or knowledge regarding this dog. (See *Forest Lawn Memorial-Park Assn. v. Superior Court* (2021) 70 Cal.App.5th 1, 8 [declaration offered at summary judgment was without a foundation in personal knowledge because it provided no “reason to establish how [the declarant] might know the information to which she was testifying”].) To the extent she is merely testifying that she does not know for a fact that any other employee knew (see Birdseye Dec., ¶ 7

[qualifying her statement about other Mission Rock employees' knowledge with "to my knowledge"]), that simply does not establish that, in fact, no Mission Rock employee had actual knowledge of Lancelot's temperament.

Ms. Birdseye's declaration is not competent evidence of the fact that no Mission Rock employee had actual knowledge of Lancelot's temperament before the incident, and Movants offer no other evidence capable of proving this point. Movants cannot lean on their competent evidence that Mission Rock has no record of a complaint about Lancelot to establish this, because such evidence does not rule out the possibility that an employee of Mission Rock other than Ms. Birdseye witnessed Lancelot behaving in a way that demonstrated a dangerous propensity and then did not report it within the company. (See *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838 [at summary judgment, the moving party's evidence is strictly construed].) Under those circumstances, Mission Rock would be considered to possess actual knowledge of Lancelot's dangerous propensities. (See *Fromberg v. Department of Alcoholic Beverage Control of Cal.* (1959) 169 Cal.App.2d 230, 233 ["As a matter of general law the knowledge of an employee acquired during the transaction of his employer's business is imputed to the latter with the same effect as if he had actually participated in the transaction."].) The mere absence of any documented complaints about Lancelot in Mission Rock's records does not prove that it did not have actual knowledge about this dog's temperament given the legal reality that Mission Rock's employees' undisclosed observations are imputed to Mission Rock.² To meet their initial burden by negating the actual knowledge element of Plaintiff's claim, Mission Rock needs to prove that it *in fact did not know*, not merely that it did not document knowledge. Where a defendant has failed to foreclose an avenue to liability, the trial court is to conclude that the defendant failed to carry its burden and deny the motion for summary judgment. (See *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 945.)

A defendant may, under certain circumstances, meet its initial burden at summary judgment by showing that the plaintiff lacks evidence necessary to satisfy an element of her claims, as opposed to by negating an element of the plaintiff's cause of action. (See *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1438.) However, a defendant cannot do this by "simply point[ing] out" an absence of necessary evidence. (*Aguilar, supra*, 25 Cal.4th 826, 854-55; see also *Weber, supra*, 143 Cal.App.4th 1433, 1438 [quoting *Aguilar*].) Instead, the moving party must present evidence sufficient to establish that the plaintiff both does not have and cannot reasonably obtain evidence to support its claims. (*Ibid.*; see also *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 83.) Litigants often do this by presenting the nonmoving party's responses to comprehensive interrogatories "designed to elicit all the evidence [the] plaintiff[] ha[s] to support" a critical element of its claim – e.g., "State all facts supporting your claim that Mission Rock had actual knowledge of Lancelot's dangerous propensities before the incident." (*Weber, supra*, 143 Cal.App.4th 1433, 1442.) A defendant is not required to use this method, but "must in same way show that the [nonmoving party] does not have and cannot reasonably obtain evidence" of a required element of its claim. (*Ibid.*) Movants' motion does not do this. Whether

² It may be practically impossible for an entity defendant to obtain summary judgment by negating an element of actual knowledge unless the entity presents a declaration from every employee or relevant response from plaintiff to a request for admission.

Plaintiff's opposition presented sufficient evidence of actual knowledge is beside the point, because the Court has no occasion to assess Plaintiff's opposition given that Movants did not satisfy their initial burden. (See *Y.K.A. Industries, supra*, 174 Cal.App.4th 339, 353-354.)

Because no Movant has carried the initial burden associated with a motion for summary judgment or adjudication, the motion is DENIED in full.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005504

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SUSAN DAVIA

vs.

DEFENDANT: MAJIC PRODUCTS INC.,
ET AL

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiff's unopposed motion to approve the Proposition 65 settlement and enter judgment as to Defendants Majic Products, Inc., Guzman Enterprises, Inc. and Concept Communications Company is **GRANTED**. (Code Civ. Proc., § 664.6.)

Discussion

The proposed settlement agreement and consent judgment contains a provision whereby the parties stipulate that this Court shall have jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6. Under section 664.6, the court is authorized to approve or disapprove a settlement agreement, but not to modify its terms. (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1375.)

California Health and Safety Code section 25249.7(f)(4) requires judicial approval of the settlement of a Proposition 65 action between private parties. The court may not grant approval unless it finds that all the statutory requirements have been met. (*Consumer Defense Group v. Rental Housing Industry Members* (2006) 137 Cal.App.4th 1185, 1207.) As set forth in the statute:

If there is a settlement of an action brought by a person in the public interest under subdivision (d), the plaintiff shall submit the settlement other than a voluntary dismissal in which no consideration is received from the defendant, to the court for approval upon noticed motion, and the court may approve the settlement only if the court makes all of the following findings:

(A) The warning that is required by the settlement complies with this chapter.

(B) The award of attorney's fees is reasonable under California law.

(C) The penalty amount is reasonable based on the criteria set forth in paragraph (2) of subdivision (b).

(Health and Saf. Code § 25249.7(f)(4).)

The Court has reviewed the settlement terms and proposed consent judgment. After proper notice, no objections have been filed. As to factor (A), the court has reviewed the moving papers and finds that the proposed warnings are in reasonable compliance with the requirements of Proposition 65. As to (C), the penalty of \$2,000 is reasonable under the criteria of the statute. With regards to factor (B), the court finds that there is sufficient information to determine that the requested fees and costs in the amount of \$40,000 are reasonable. The amount of fees requested represents a reduction to Plaintiff's documented lodestar calculation.

Accordingly, the settlement is approved and the Court will enter the consent judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009002

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: LAURIE MARTIN

vs.

DEFENDANT: ERIC GORDON, ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

The request to deem matters admitted is moot but the request for sanctions is **granted in the amount of \$500**. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

Discussion

According to her declaration in opposition to the motion, Plaintiff served verified responses to Defendant James Kunkle's requests for admission on June 9, 2026. There is no information before the Court indicating that these responses were not in substantial compliance with Code of Civil Procedure section 2033.220. Accordingly, based on this representation, the motion to deem the requests admitted is denied as moot. (See Code Civ. Proc., § 2033.280, subd. (c).) It is mandatory under the statute that the Court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated the filing of the motion. (*Id.*) The failure in this case was not particularly egregious, as Plaintiff did attempt to obtain an extension of time to respond. Therefore, considering all the circumstances, the Court will impose **a monetary sanction of \$500** to offset the cost of drafting and filing the motion. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009837

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: COLLEEN M. PROPPE

vs.

DEFENDANT: BRIAN T. COSTELLO

NATURE OF PROCEEDINGS: MOTION – OTHER: FOR JUDGMENT ON PLEADINGS

RULING

There is no proof of service on file for Defendant's motion for judgment on the pleadings. The motion is therefore **DENIED without prejudice** to refiling the motion upon proper service.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

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